Tentative Rulings
July 24, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (https://www.sb-court.org/divisions/civil/civil-tentative-rulings) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

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16. *Santos, et al, v. Ozkarahan, et al,* Case No. CIVSB2317819
Plaintiff Lechel Prater's Motion to Compel Further Response to Third Amended Depo Notice
7/24/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT** and require the production of the at-issue video within 20 days. Alternatively, if Defendant Ozkarahan no longer has the video, he is to provide a Code-compliant response per Code of Civil Procedure section 2031.230.

Case Summary

This case is, in essence, a negligence and emotional distress action. Here, Plaintiffs are a married couple who lived at an apartment complex allegedly owned or run by Defendants. Plaintiffs assert on information and belief that Defendant Ozkarahan operates the property; the Ozkarahan Family Trust 2000 owns the property; and MK Ozkarahan Properties engaged in advertising, renting, and managing the property. (FAC, ¶¶6-7.)

The alleged facts are as follows: At about midnight on December 1, 2022, as Plaintiffs drove to the entrance of the property, they observed an unfamiliar vehicle parked in their parking space. Plaintiffs allege that a broken gate and broken access door lead the property to be unsecured and unsafe. After honking at the vehicle, Plaintiffs allege the occupants of the car began to shoot at them, ultimately shooting both Plaintiffs in the head and leading to severe injuries.

Following the event, on August 2, 2023, Plaintiffs filed a Complaint. Following a sustained demurrer, Plaintiffs filed the operative First Amended Complaint (FAC) on March 21, 2024. The FAC alleges identical causes to the prior Complaint, namely: (1) negligence; (2) premise liability; (3) breach of warranty of habitability; (4) nuisance; (5) negligent infliction of emotional distress (NIED); (6) intentional infliction of emotional distress (IIED); and (7) gross negligence.

Analysis

Relevant here, on December 18, 2025, Plaintiff Prater served a third notice to Defendant Ozkarahan for the Deposition of property manager (Nunez). The notice had 23 requests for production of documents (RPD). Importantly, Request No. 19 requested "All videos depicting the PARKING GATE located at the SUBJECT LOCATION from 2017 to the time of the INCIDENT." Defendant served objections on January 15, 2026, including an objection to Request 19 on the basis that the request was overly broad and unduly burdensome, among other things. (Nashalian Decl., ¶5 & Exh. 3.)

On January 21, 2026, the deposition went forward and Nunez testified that she had viewed video surveillance, including one that depicted the shooting suspects entering and exiting through the front gate. (Nunez Depo, pp. 43-48.) This motion to seek response to Request No. 19 and, specifically, the at-issue video followed.

Here, the issue is limited to the discrepancy between the objection to Request 19 and Nunez's deposition testimony that a second video exists. Good cause exists for compelling production of the video, as Nunez's testimony indicated that it showed the suspects entering and exiting the parking lot. Thus, the video is relevant to the subject matter of the litigation and material to the issues in the litigation.

Plaintiff Prater argues that Defendants must either produce the video or, if they are unable to because it is no longer in their possession, provide a code complaint response under section 2031.230. The Court agrees.

Defendants' counsel does not dispute the timeliness of the motion's filing, good cause existing, nor does he assert any of the objections raised in Nunez's initial response to Request 19. In fact, no opposition was filed nor is there even a dispute that Prater is entitled to the video. He simply states that "defendants are not in possession of any video of the incident other than that which has been already produced and which plaintiff acknowledges possession of . . . [i]f and when any 'second video' is located, the video will be produced to plaintiff's counsel immediately." (Longo Decl., ¶2-3.)

Given that Prater seeks a copy of the video through the appropriate discovery device and there is no opposition from Defendant in providing it, the Court would grant the motion and compel production of the video within twenty days. If Defendant is unable to do so because he cannot locate the video, then Defendant must provide a verified response that complies with section 2031.230.

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18. *Kaur v. The Permanente Medical Group, Inc., et al,* Case No. CIVSB2519011
Defendants' Motion to Compel Arbitration
7/24/26, 9:00 a.m., S-17

Tentative Ruling

The Court would **GRANT** the motion to compel arbitration. The matter will be stayed until the completion of the arbitration.

Case Summary

This case arises is brought by a surviving spouse and relates to the death of her spouse (decedent) while in emergency care. Plaintiff is the surviving spouse. In short, the decedent passed from a heart attack on May 20, 2024, while receiving emergency care at Kaiser's Fontana Medical Center. Plaintiff alleges that, while decedent was receiving care, Defendant allowed parties to enter and remain in the emergency room "creating a crowded environment that compromised [decedent's] privacy and negligently interfered with necessary medical care." (Compl., ¶11.) Plaintiff further alleges that medical staff refused to administer shock treatment and that Defendant allowed individuals to photograph and videotape, thereafter posting to social media. As such, she filed suit on July 1, 2025, against The Permanente Medical Group, Kaiser Foundation Hospitals, and Kaiser Foundation Health Plan (collectively "Kaiser"). The Complaint alleges causes for (1) negligence; (2) negligent hiring, supervision, or retention of employees; (3) intentional infliction of emotional distress; (4) negligent infliction of emotional distress; and (5) invasion of privacy – survivor's right to control death images.

Statement of the Law

California law favors the enforcement of valid arbitration agreements. (*Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 320; *In re Tobacco I* (2004) 124 Cal.App.4th 1095, 1103.) Any doubts to arbitration will be resolved against the party asserting a defense to arbitration, whether the issue is construction of contract language, waiver, delay or any like defense to arbitrability. (*Erickson, supra,* 35 Cal.3d at p. 320.)

Under Code of Civil Procedure section 1281.2, a party to an arbitration agreement may move to compel arbitration if another party to the agreement refuses to arbitrate, and the court shall order the parties to arbitrate if it determines an agreement to arbitrate exists, unless it determines (a) the right to compel has been waived by the petitioner; (b) grounds exist for revocation of the agreement; or (c) a party to the agreement is also a party to a pending court action or special proceeding, arising out of the same transaction or related transaction, and there is a possibility of conflicting rulings on common issues of law or fact. (Code Civ. Proc., § 1281.4.)

The Court must determine when a petition to compel arbitration is filed and accompanied by prima facie evidence of a written arbitration agreement whether the agreement exists, if any defense to its enforcement is raised, and whether the agreement is enforceable. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th394, 413.) The moving party bears the burden of proving the existence of the arbitration agreement by preponderance of the evidence. (*Ibid.*) If the party opposing the petition raises a defense to enforcement, then he bears the burden of producing evidence and proving by preponderance of the evidence any fact necessary to the defense. (*Ibid*.)

The Federal Arbitration Act (FAA), at 9 U.S.C. §1, *et seq*., also authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2). The enforcement language of the FAA is almost identical to Code of Civil Procedure section 1281. In situations governed by the FAA, conflicting state law is preempted in either state or federal courts. (*Volt Info. Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477 ["The FAA contains no express pre-emptive provision, nor does it reflect a congressional intent to occupy the entire field of arbitration . . . . But even when Congress has not completely displaced state regulation in an area, state law may nonetheless be pre-empted to the extent that it actually conflicts with federal law . . . ."].)

Analysis

FAA Application: Defendant Kaiser meets its burden to show the arbitration agreement affects interstate commerce. The moving defendant bears the burden of demonstrating FAA coverage by declarations and other evidence. (*Shepard v. Edward Mackay Ent., Inc.* (2007) 148 Cal.App.4th 1092, 1101.) The FAA applies to arbitration clauses involving interstate commerce. (9 U.S.C. § 2; *Aviation Data, Inc. v. American Express Travel Related Services Company, Inc.* (2007) 152 Cal.App.4th 1522, 1534.)

Here, Kaiser presents evidence that its hospitals and medical offices use large quantities of equipment and supplies purchased and shipped from outside of California; that its facilities are constructed with materials and services obtained from out of state sources; and that Kaiser is required to pay for, or provide, certain medical services to its plan members from providers outside of California. (Everett Decl., ¶¶3-4.) Plaintiff offers no argument in opposition. Thus, the Court concludes the FAA applies.

The Arbitration Provision: In California, general principles of contract law determine whether the parties have entered a binding agreement to arbitrate and the party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.) Providing an executed copy of the arbitration agreement satisfies a defendant's initial burden. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058-1060.)

Here, Kaiser presents evidence that decedent entered into a Combined Membership Agreement, Evidence of Coverage, and Disclosure form (EOC) for the years 2023 and 2024. (Fertel Decl., Exhs. A, A-1.) That EOC contains an arbitration provision, which states:

> Any dispute shall be submitted to binding arbitration if all of the following requirements are met:
>
> - The claim arises from or is related to any alleged violation of any duty incident to or arising out of or relating to this EOC or a Member Party's relationship to Kaiser Foundation Health Plan, Inc. ("Health Plan"), including any claim for medical or hospital malpractice (a claim that medical services or items were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), for premises liability, or relating to the coverage for, or delivery of, services or items, irrespective of the legal theories upon which the claim is asserted
> - The claim is asserted by one or more Member Parties against one or more Kaiser Permanente Parties or by one or more Kaiser Permanente Parties against one or more Member Parties

- Governing law does not prevent the use of binding arbitration to resolve the claim

(Fertel Decl., Exh. A [EOC pp. 77-78.], A-1 [EOC, p. 77].) “Member Parties” includes a member, a member’s heir, relative, or personal representative; and any person claiming a duty to them arises from a member’s relationship to one or more Kaiser Permanente Parties. Kaiser “Permanente Parties” includes The Permanente Medical Group physician, Kaiser Foundation Hospitals, and Kaiser Foundation Health Plan, Inc. (Fertel Decl., Exh. A [EOC, p. 78], A-1 [EOC, p. 77].)

Further, as part of Kaiser’s online enrollment process, on July 6, 2023, and again on November 21, 2024, decedent provided his electronic signature on the Covered California Online Enrollment System acknowledging that:

> I understand that every participating health plan has its own rules for resolving disputes or claims, including, but not limited to, any claim asserted by me, my enrolled dependents, heirs, or authorized representatives against a health plan, any contracted health care providers, administrators, or other associated parties, about the membership in the health plan, the coverage for, or the delivery of, services or items, medical or hospital malpractice (a claim that medical services were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), or premises liability. I understand that, if I select a health plan that requires binding arbitration to resolve disputes, I accept, and agree to, the use of binding arbitration to resolve disputes or claims (except for Small Claims Court cases and claims that cannot be subject to binding arbitration under governing law) and give up my right to a jury trial and cannot have the dispute decided in court, except as applicable law provides for judicial review of arbitration proceedings. I understand that the full arbitration provision for each participating health plan, if they have one, is in the health plan's coverage document, which is available online at CoveredCA.com for my review, or I can call Covered California for more information.

(Taylor Decl., Exhs. C, D.)

Kaiser provides copies of the Covered California E-Signature Reports showing Decedent agreed to his electronic signature. (Taylor Decl., Exhs. E, F.)

Plaintiff argues Kaiser does not adequately authenticate Decedent’s signature on the arbitration agreement because Exhibits E and F provide no signatures, and Kaiser cannot show that only the Decedent could have signed the agreements. However, contrary to Plaintiff’s argument, Kaiser has sufficiently shown that the decedent electronically signed the arbitration agreement: Although Kaiser bears the burden, it may authenticate an electronic signature “in any manner,” including presenting evidence of the agreement at issue and the circumstances of its execution. (*Ruiz, supra,* 232 Cal.App.4th at pp. 844-845.) “[T]he burden of authenticating an electronic signature is not great.” (*Ibid*.)

As to coverage, Plaintiff argues that her claims do not arise out of the arbitration agreement. Relying on *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 356, a case not related to medical arbitration, Plaintiff argues that because the agreement uses the phrase "arising out of," the scope of the agreement must be narrowly construed. Plaintiff argues that when narrowly considered, the purpose of the arbitration agreement was only to set forth the parties' obligations as related to decedent's "medical care and treatment." Plaintiff argues that her claims are not related to the medical care but are, rather, "entirely premised on Defendants' conduct after [decedent] had already been pronounced deceased." The Court disagrees.

Here, the arbitration agreement requires that any dispute must be submitted to arbitration if the "claim arises from or is related to any alleged violation of any duty incident to or arising out of or relating to this EOC or a Member Party's relationship to Kaiser Foundation Health Plan, Inc." and includes any claim relating to "delivery of, services or items, irrespective of the legal theories upon which the claim is asserted." (Fertel Decl., Exh. A, p. 77.) Plaintiff's claims are related to decedent's receiving and Kaiser's delivery of services under the EOC.

<u>Unconscionability:</u> Unconscionability has requires a procedural and a substantive element, "the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 [citation and quotation marks omitted].) Both elements must be present before a contract provision will be rendered unenforceable on grounds of unconscionability. (*Ibid*.) However, they need not be present to the same degree. Rather, courts invoke a "sliding scale" to determine unconscionability: "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Ibid*.)

Here, Plaintiff has presented no evidence of procedural unconscionability. In light of Plaintiff failing to show any procedural unconscionability exists, the Court need not consider Plaintiff's argument related to substantive unconscionability. However, as Kaiser points out on reply, Plaintiff's substantive unconscionability argument consists only of a series of four listed items, without any citation to provisions or legal analysis offered in support. Thus, the Court declines to find unconscionability.

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19. *Marquez v. Look Cinemas II, LLC, et al,* Case No. CIVSB2428912
Defendant Spirit's Motion for Summary Adjudication on Cross Complaint
7/24/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT**[1] Spirit's motion for summary adjudication as to Look Cinemas' duty to defend them in this action pursuant to paragraph 9.1 of the lease.

Case Summary

This is, essentially, a premises liability matter. Defendant Look ran the theater premises; Defendant Spirit owned the premises; and Defendant Morrison was the property manager. Plaintiff was lawfully on the property when she fell due to a purportedly hazardous and dangerous condition.

As such, on October 8, 2024, she filed suit alleging (1) negligence and (2) premises liability. On December 5, 2024, Defendant Spirit filed a Cross-Complaint against Look for (1) contractual indemnity; (2) equitable indemnity; (3) contribution; (4) breach of sub-contracts; and (5) declaratory relief. On April 4, 2024, an amended Cross Complaint was filed asserting the same causes but including a corrected caption. On July 1, 2025, Plaintiff filed a dismissal without prejudice as to Defendant Morrison.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

[1] Materials considered: Complaint; Cross-Complaint; Answer to Cross-Complaint; motion for summary adjudication as to the Cross-Complaint; Request for judicial notice; Campbell Declaration, Senior Vice President and Assistant General Counsel, Risk and Litigation for Realty Income Corporation, parent company for Spirit Master Funding X, LLC; separate statement and replies; Look Cinemas filed an opposition declaration of Kimberly Byrge, Esq. and their own separate statement and replies by Spirit; reply and request for judicial notice.

A summary adjudication motion is subject to the same rules and procedures as a summary judgment motion. (*Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

Material Facts

Defendant/Cross-Complainant Spirt entered into a lease agreement with Defendant/Cross-Defendant Look that became effective on May 11, 2021. (UMF, 1.) Plaintiff filed a complaint on October 8, 2024, against Spirit and Look. (UMF, 3.) Plaintiff alleges that her fall caused her personal injuries. (UMF, 5.) Plaintiff alleged that Look owned, controlled, and operated the Property. (UMF, 6 [undisputed that this was Plaintiff's contention but not an admitted fact.] Plaintiff alleges that Spirit owned the Property. (UMF, 7.) On June 15, 2024, Spirit tendered Plaintiff Marquez's claim to. (UMF, 8.) On April 4, 2025, Spirit filed a first amended cross-complaint against Look. (UMF, 9.) To date, Look Cinemas has denied that it has any obligation to defend Spirit in this instant action. (UMF, 10.)

Notably, Section 9.1 of the lease states, in pertinent part, that tenant shall indemnify and hold harmless against losses "relating in any way to the Leased Premises or caused by, incurred or resulting from Tenant's operations or by Tenant's use and occupancy . . . ." (UMF, 2.) Section 16.9 of the lease agreement defines "Losses" as meaning all claims, suits, liabilities (including, without limitation, strict liabilities), actions, proceedings, obligations, debts, damages, losses, Costs, diminution in value, fines, penalties, interest charges, fees, judgments, awards, amount paid in settlement and damages of whatever kind or nature, inclusive of bodily injury and property damage to third parties (including without limitation, attorneys' fees and other Costs of defense.) (UMF, 11.)

<u>*Look's Additional Material Facts:*</u> At the time of the incident in May 2024, Look had leased the premises, from Spirit pursuant to a lease agreement. (UAMF, 2.) On or about May 4, 2024, Plaintiff was an invitee at the premises when she tripped and fell and sustained injury due to an alleged dangerous condition of the floor, specifically the flooring materials. (UAMF, 4.)

Disputed Additional Material Facts: The lease agreement contained an indemnity provision that required Look to indemnify Spirit for occurrences at the premise resulting only from Look's use and operation of the property. (DAMF, 3.) The provision also acknowledges the following: Tenant shall indemnify, protect, defend and hold harmless... excluding losses suffered by an Indemnified Party arising out of the gross negligence or willful misconduct of such Indemnified Party." (*Ibid.* [disputed. The lease agreement contained an indemnity provision that required Look to "indemnify, protect, defend and hold harmless each of the Indemnified Parties from and against any and all Losses . . . relating in any way to the Leased Premises . . ."].) There has been no allegation or evidence that Plaintiff slipped or tripped on debris or any foreign object or liquid substance on the floor. (DAMF, 5 [disputed. Plaintiff contends that the floor was excessively sticky].) Plaintiff contends the dangerous condition of the floor included structural failures that did not comply with applicable building code requirements or ADA regulations for slope and handrail accessibility. (DAMF, 6 [disputed, as the only contention made in Plaintiff's Complaint as to the dangerous condition is specifically as to the ground material. These contentions were not made in Plaintiff's complaint. Plaintiff contends the flooring as excessively sticky/tacky].)

Plaintiff further contends that the structural condition of the flooring material was inherently unsafe, improperly selected, and unsuitable for commercial use and that the slope of the flooring itself violated applicable building code standards and ADA regulations, specifically when not accompanied by handrails. (DAMF, 7 [disputed. The only contention made in Plaintiff's Complaint as to the dangerous condition is specifically as to the ground material. These contentions were not made in Plaintiff's complaint. Plaintiff contends that flooring was excessively sticky/tacky].) Prior to Look taking possession of the premises there was a major renovation to the entire building, including the floor. (DAMF, 8 [disputed. Look has provided no facts other than a witness testifying that when she visited the premises while in possession of Look Cinemas, that the appearance had been altered].) Since taking possession of the premises, there is no evidence that Look altered, changed or modified the floor in any manner. (DAMF, 9 [disputed. Look has provided no facts other than a witness testifying that, when she visited the premises while in possession of Look, that the appearance had been altered].)

Analysis

On an express indemnity claim, the following is required: (1) contract defining the obligation of one party to make good as to a loss another party incurred; and (2) occurrence of loss the other party incurred or of some other legal consequence of conduct of another party. (*McCrary Construction Co. v. Metal Deck Specialists, Inc.* (2005) 133 Cal.App.4th 1528, 1536.) "[W]here parties have expressly contracted with respect to the duty to indemnify, the extent of that duty is generally determined from the contract and not by reliance on the independent doctrine of equitable indemnity." (*Maryland Casualty Co. v. Bailey & Sons, Inc.* (1995) 35 Cal.App.4th 856, 864.)

An indemnity agreement "is construed under the same rules as govern the interpretation of other contracts." (*Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, 552.) "Effect is to be given to the parties' mutual intent, as ascertained from the contract's language if it is clear and explicit. (*Crawford, supra,* 44 Cal.4th p. 552 [internal citations omitted].) "Unless the parties have indicated a special meaning, the contract's words are to be understood in their ordinary and popular sense." (*Ibid*.)

"[W]here plaintiff's complaint alleges facts embraced by the indemnity agreement, the indemnitor has a duty to defend throughout the underlying tort action unless it can conclusively show by undisputed facts that plaintiff's action is not covered by the agreement." (*Centex Home v. R-Help Construction Co., Inc.* (2019) 32 Cal.App.5th 1230, 1237.) "In the absence of a contrary intention in the language used, the law will imply, in an agreement to indemnify, an agreement to defend actions brought against the indemnitee 'in respect to the matters embraced by the indemnity.'" (*Ibid.*) "In other words, in the absence of any contrary intention, the scope of the duty to defend which is implied in an indemnification clause has the same scope as the duty to indemnify." (*Ibid.*) "Conversely, if an action is brought against the indemnitee which is not 'embraced by the indemnity' duty, there is no duty to defend." (*City of Bell v. Superior Court* (2013) 220 Cal.App.4th 236, 249.)

Here, Look – the tenant – argues gross negligence or willful misconduct prohibits it from providing a Defense for Spirit in this case. Look argues that building code violations constitute negligence per se and that failure to correct them can support a finding of willfulness, citing Evidence Code section 669, failure to exercise due care. Notably, the cases cited by Look in the opposition had willfulness in the statute violated.

Spirit, on the other hand, argues that Look inspected the premises and found them adequate for its use. Importantly, the lease language bares this out:

> 3.1 Grant of Lease. Landlord hereby leases to Tenant and Tenant hereby leases from Landlord, the Leased Premises in its "as is" condition, subject to the terms and provisions of this Lease. Tenant has physically inspected the Leased Premises and has examined title to the Leased Premises, as well as to the furniture, fixtures, or equipment, including without limitation the "Landlord F&E" (as defined below) located on or in the Leased Premises, and has found all of the same satisfactory in all respects for all of Tenant's purposes. Landlord has not made any representations or warranties, whether express or implied, regarding: (a) the condition or ownership of any of the furniture, fixtures, or equipment located on or in the Leased Premises (including without limitation the Landlord F&E) or (b) whether or not any third parties hold any lien rights with respect to such furniture, fixtures, or equipment. . . . In addition to the foregoing, Tenant shall be responsible for repair, maintenance, replacement, insurance, and any costs related to the Landlord F&E during the Term. . . .

(Emphasis added.) Moreover, Look took possession of the property in 2021, and Plaintiff's fall occurred in 2024. Thus, Look inspected the property; did not have an issue; and then entered into a triple net lease claiming full control of the property. Then three years later the Plaintiff fell and now Look claims that Spirit could have had some gross negligence or willful misconduct. However, there is no evidence as to those claims and Look took the possess "as is." Thus, there is no issue of material fact regarding the purported gross negligence or willful misconduct.

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